

****File No.**** EXP202306611

****RESOLUTION OF****

****PROCEEDING OF WARNING****

From the proceeding initiated by the Spanish Agency for the Protection of Data and based on the following

****BACKGROUND****

****FIRST:**** On May 15, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant states that the respondent has placed a surveillance camera outside the building of which the complainant claims to be the President of its Community, a camera that, due to its location and orientation, is capable of capturing images of the access to the building and of the public road, without having authorization for this.

Images of the camera's location are provided.

****SECOND:**** In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was sent by postal mail on May 19, 2023, and was returned, so it was attempted again on June 16, 2023, and was recorded as delivered on July 30, 2023.

However, no response has been received to this forwarding letter.

****THIRD:**** On August 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

****FOURTH:**** On October 10, 2024, the Director of the Spanish Agency for the Protection of Data agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

****FIFTH:**** The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was collected on November 1, 2024, as recorded in the acknowledgment of receipt in the file.

****SIXTH:**** Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has been acted upon by the Spanish Agency for the Protection of Data in this proceeding, the following facts are considered proven,

****PROVEN FACTS****

****FIRST:**** The respondent has placed a surveillance camera outside the building of which the complainant claims to be the President of its Community, a camera that, due to its location and orientation, is capable of capturing images of the access to the building and of the public road.

****LEGAL GROUNDS****

****I****

****Competence****

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for the

Protection of Data is competent to initiate and resolve this proceeding.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

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****The image is a personal data****

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

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“‘treatment’: any operation or set of operations performed on personal data or sets of personal data, whether by automated procedures or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;”

The images generated by a system of cameras or video cameras are personal data, so their treatment is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the treatment of personal data (images of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the treatment of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

For the treatment of personal data to be lawful, it must fall under one of the cases outlined in Article 6.1 of the GDPR, which states the following:

1. The treatment will only be lawful if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or for the application at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provisions of paragraph f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

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The use of video surveillance systems in the common areas of a community of property owners must

respect various aspects for such a recording system to comply with current data protection regulations. First, it must have the proper legitimacy, so that the installation of cameras in common areas is in accordance with data protection regulations, it will be necessary for such installation to have been approved by an agreement of the Board of Owners, and this agreement must be reflected in the minutes of said Board.

It is recommended that the agreement reflects some of the characteristics of the video surveillance system, such as the number of cameras or the area covered by them.

Secondly, prior to its operation, the registration of activities related to this treatment must be carried out. This is an internal document. The FACILITA_RGPD tool available on the AEPD website can be used when it does not involve large infrastructures (train stations, shopping centers). The Guide on the use of video cameras for security and other purposes provides a model for the registration of activities. Thirdly, one or more signs must be installed at the various access points to the monitored area, and in a visible place, informing that access is to a monitored area.

The sign will clearly indicate the identity of the person responsible for the installation, to whom and where to address to exercise the rights provided for by data protection regulations, and where to obtain more information about the processing of personal data. The AEPD provides a model sign in the Guide on the use of video cameras. Likewise, the remaining information required by data protection legislation must be made available to those affected.

Such information may be available at the concierge, reception, offices, bulletin boards, or accessible via the Internet.

Regarding the installation of the video surveillance system, the cameras may only capture images of the common areas of the community. Images of public roads may not be captured unless it is essential for the intended purpose, except for a minimal strip of the accesses to the property, nor images of adjacent land and homes or any other external space.

If orientable and/or zoom cameras are used, the installation of privacy masks will be necessary to prevent capturing images of public roads, land, and homes of third parties.

The hiring of an external video surveillance service or the installation of cameras by a third party does not exempt the community of property owners from compliance with data protection regulations.

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Regarding the monitors and the display of images, it should be indicated that access to the images will be restricted to individuals designated by the community. Under no circumstances will they be accessible to the residents via the community television channel.

If access is made through an Internet connection, it will be restricted with a username and password (or any other means that guarantees unique identification and authentication), which will only be known by the authorized individuals who are allowed to access such images.

Once the system is installed, it is recommended to change the password, avoiding easily deducible ones.

In the event that the camera system includes a recording system, it will be located in a monitored or restricted access area. Only authorized personnel will have access to the recorded images, who must enter a username and password.

The images will be retained for a maximum period of one month from their capture, after which they will be deleted.

Images used to report crimes or infractions will be attached to the report and will be retained for possible delivery to the Security Forces or to the Courts and Tribunals that require them. They may not be used for any other purpose.

Requests for images by the Security Forces will be made within the framework of judicial or police actions. The request to the data controller will be the document that protects them in order to provide data to the Security Forces or to the Courts and Tribunals that require them.

III

Violation of Article 5.1 c) of the GDPR

Article 5.1 c) of the GDPR states the following: Personal data shall be: “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

That is to say, cameras and video cameras installed for security purposes may not obtain images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby who freely transit the area. Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

In this case, from the documentation provided in the file, it can be inferred that the respondent has installed a camera that is capable of capturing images of the public road and has not proceeded to reorient it after being warned of this.

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In accordance with the available evidence, it is considered that the facts presented violate the provisions established in Article 5.1.c) of the GDPR, which could constitute an infringement as defined in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a

substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of ensuring the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by less intrusive means for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with that which motivated the installation of the video surveillance system.

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3.- The obligation to inform those affected, as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a “layered information” system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as previously indicated.

5.- Images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording was obtained.

6.- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and Resolutions” / “Regulations”),

- the Guide on the use of video cameras for security and other purposes,

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- The Guide for Compliance with the Duty to Inform (both available in the "Guides and Tools" section). It is also of interest, in the case of processing low-risk data, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows for an assessment of the situation of the data controller regarding the personal data processing they carry out, and, if applicable, generates various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Resolution of Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any data controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third section:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case."

VI

Adoption of Measures

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Once the infringement is confirmed, it is agreed to impose on the data controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...".

In this case, in the adopted resolution, this Agency requires the data controller to, within one month from the issuance of the resolution:

Prove that they have proceeded with the removal or reorientation of the camera, so that the viewing of the images does not capture access to the building, nor the public road or, if applicable, only captures the minimum portion of public road areas essential to ensure the safety of persons, property, and facilities.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the

initiation of further administrative proceedings for warning.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the time this resolution becomes final and enforceable, to prove that they have proceeded with the removal or reorientation of the camera, so that the viewing of the images does not capture access to the building, nor the public road or, if applicable, only captures the minimum portion of public road areas essential to ensure the safety of persons, property, and facilities.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of

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the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of

Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2

LOPDGDD, due to vacancy in the position of Presidency and Deputy

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